

The Code the Courts Do Not Cite:

Measuring Uptake After Codification

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ABSTRACT

Comparative law has long asked what happens when a state enacts a code. The answer has been sought in doctrine, in institutions, and in economic aggregates, but almost never in the one place where a code either works or does not: the reasoning of the courts said to apply it. This Article supplies that measurement for a jurisdiction that has just codified. Saudi Arabia enacted a comprehensive civil code in 1444H, and the same royal decree amended the jurisdiction clause of its commercial courts to point at it. Its Ministry of Justice publishes commercial judgments in full text. Matching 121,207 statutory citations drawn from 50,666 published judgments to 15,855 enacted articles across 291 instruments, this Article measures uptake at the level at which a lawyer argues: the article.

Uptake is low and lopsided. 11.7 per cent of the statute book is ever cited; 30.5 per cent of the articles within the commercial courts' own statutory jurisdiction; and 89.2 per cent of what is applied is procedural rather than substantive. The contrast needs no denominator: the law telling the court how to proceed has 99.0 per cent of its articles cited, and the code telling the court what the parties owe each other has 27.5 per cent. Segmenting each judgment by its own headings locates the narrowing at the bench rather than the bar. The Article argues that enactment and uptake are separate facts, that the second is measurable wherever judgments are published, and that comparative law's central claims about transplanted codes have been resting on the first.

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I. Introduction

A legislature that enacts a code has done something. What it has done is usually described in the language of the enactment itself: a rule now exists, a gap is closed, a field is governed. Whether the courts said to apply the code in fact reason from it is a different proposition, and it has been remarkably hard to check.

The difficulty is not conceptual. It is that checking requires two things at once, in the same jurisdiction, at the same level of detail: a machine-readable statute book, article by article, and a body of judgments in full text large enough that what the courts cite can be counted rather than sampled. Where judgments are published in full, codes are old; where codes are new, judgments are seldom published. Comparative law has therefore argued about the effect of transplanted codes for half a century on evidence that never included the courts' own words at scale.²

Saudi Arabia has, for a brief period, both. The Civil Transactions Law was issued by Royal Decree No. M/191 of 29/11/1444H, codifying the general law of obligations and contract for the first time in the Kingdom's modern history.³ The same decree amended article 16 of the Commercial Courts Law, the provision that fixes what the commercial courts may hear.⁴ And the Ministry of Justice publishes commercial judgments in full text, including the appellate decision where a case went up.

²The canonical statement of the problem is ALAN WATSON, *LEGAL TRANSPLANTS: AN APPROACH TO COMPARATIVE LAW* (2d ed. 1993), which treats borrowing as the ordinary engine of legal change. The principal empirical challenge is Daniel Berkowitz, Katharina Pistor & Jean-François Richard, *The Transplant Effect*, 51 *AM. J. COMP. L.* 163 (2003), which measures the consequences of transplantation through institutional and economic indicators rather than through adjudication itself.

³Civil Transactions Law, Royal Decree No. M/191 (29/11/1444H) (Saudi Arabia) [hereinafter CTL]. The corpus used here holds all 721 of its articles, each verified against the Ministry of Justice's own legal portal.

⁴Commercial Courts Law, Royal Decree No. M/93 (15/8/1441H) (Saudi Arabia) [hereinafter CCL], art. 16, as amended by Royal Decree No. M/191 (29/11/1444H). The amendment is not incidental to this Article's question: the instrument that created the code also redrew, in the same breath, the jurisdiction of the courts most likely to apply it.

That conjunction permits the measurement this Article reports. Drawing 121,207 statutory citations from 50,666 published judgments and matching each to the article cited, across 15,855 articles in 291 instruments, it asks how much of an enacted statute book a court system actually uses.

The answer is that uptake is small, and that its shape is more informative than its size. 11.7 per cent of the articles in the statute book are ever cited in a published judgment. Narrowing the denominator to the articles falling within the commercial courts' own statutory jurisdiction raises that only to 30.5 per cent. And 89.2 per cent of everything the courts do cite is procedural: it governs how a case is heard rather than what the parties owe each other.

The sharpest form of the result needs no denominator at all, because it compares two instruments to themselves. The Commercial Courts Law, which tells the court how to proceed, has 99.0 per cent of its 96 articles cited somewhere in the corpus. The Civil Transactions Law, which tells the court what the parties owe each other — and which the amended jurisdiction clause of the first statute points the court toward — has 27.5 per cent of its 721. A legislature enacted both. The courts have taken up one.

Three further results bear on why, and each is designed to close an explanation that would otherwise be available. First, the narrowing is not imposed by the parties. Segmenting each judgment at its own headings, and attributing each citation in the statement of the case to the court or to a litigant, shows the court's reasons to be *more* procedural than the arguments put to it, not less.⁵ Substantive instruments are raised, and are answered with procedure.

Second, the unused portion of the book is not merely its neglected or superseded portion. If legislative attention tracked judicial use, the amended part of the statute book would be the applied part. Within instruments, it is not.

Third, the measurement is not an artefact of what the Ministry chooses to publish, or at least not in the direction that would explain it away. The published record is overwhelmingly commercial,

⁵See *infra* Part IV.C. The attribution step matters: a court reciting the provisions under which it convened is not a party raising them, and leaving that narration inside the parties' segment flatters the parties' procedural share.

which is precisely why the Civil Transactions Law’s low share is difficult to dismiss: these are the courts whose jurisdiction clause was amended to name it.

This Article proceeds in five Parts. Part I sets out what comparative law has claimed about codification and transplantation, and why the claim has not been tested against adjudication. Part II describes the Saudi setting: the code, the jurisdiction clause, and the publication practice that makes the measurement possible. Part III states the method, including three defects that produced confident wrong answers before they were found. Part IV reports the findings. Part V takes up what follows for comparative law, for legislative evaluation, and for the courts themselves, and states the limits that bound every figure here — the most important being that this Article measures the first years of a code, and a code’s first years are not its verdict.

II. Codification and Its Unmeasured Promise

A. What Enactment Is Taken to Accomplish

[Part I.A: the doctrinal and comparative claim — codification as the substitution of a general written law for uncodified sources, and the assumption that adjudication follows.]

B. Transplantation, Irritation, and the Missing Evidence

[Part I.B: Watson, Teubner, Berkowitz–Pistor–Richard; what each measures and why none measures adjudication at article level.]

C. What Would Count as Evidence

[Part I.C: the argument that uptake is the operative fact, and the conditions under which it can be observed.]

III. The Saudi Setting

A. The Civil Transactions Law

[Part II.A: M/191, 721 articles, first codification of the general law of obligations; its relation to the uncodified sources it did not displace.]

B. The Jurisdiction Clause

[Part II.B: CCL art. 16 and its amendment by the same decree.]

C. A Published Record

[Part II.C: what the Ministry publishes, and the three defects in the published fields that shape the method.]

IV. Method

[Part III.]

V. Findings

- A. Uptake at the Article Level*
- B. The Procedural Asymmetry*
- C. The Bench, Not the Bar*
- D. Amendment Does Not Predict Use*

VI. Implications and Limits

- A. For Comparative Law*
- B. For Legislative Evaluation*
- C. Limits*

Data and Code

The corpus, the extraction and matching code, and the scripts that generate every figure in this Article are public.⁶

⁶<https://github.com/Abdullah-m7/saudi-legal-corpus-ai>. Every measurement reported here is generated into a single file of macros and typeset from it; a check refuses to build a manuscript that types one by hand.